IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

ITEM No. 336
(CAA)-183(PB)/2017

IN THE MATTER OF:
KPS Infraproject Limited and Fortune Proptech Pvt. Ltd.
..... Petitioners/Applicant

Under Section 230-232

Order delivered on 13.03.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

SH. S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Petitioner — Mr. Ashish Middha, Adv.
For the IT — Mr. Lakshmi Gurung, St. Counsel

ORDER

In response to the reply filed on 25.02.2019 filed by the Income Tax Department in respect of transferor company No. 3-Neon Buildtech Pvt. Ltd. a Rejoinder affidavit by the transferee company has been filed i.e. Ms. Fortune Proptech Pvt. Ltd. In para 3 it has been averred that the transferee company shall adjust the refunds and demands of all the petitioner companies and shall pay entire dues of each petitioner companies after the appeals, reviews, revisions are decided and attain finality. In the documents attached with the rejoinder affidavit a copy of the stay application has been filed showing that 20% of the demand raised has been deposited which is minimum amount to entertain the filing of appeal before the CIT (appeal). Ms. Gurung, Ld. Standing Counsel for the Income tax department has argued that penalty proceedings have also been initiated and notice dated 24.11.2018 was issued for the transferor

company No. 3 to appear on 10.12.2018 and that the proceedings are still pending. In the rejoinder affidavit there is no undertaking with regard to the penalty proceedings. Let the undertaking to that effect be filed so that the interest of the revenue remains intact as the transferor company No. 3 after the sanction of the scheme is likely to be dissolved. The needful shall be done within ten days with a coy in advance to the counsel for the Income Tax Department.

List for arguments on 10.04.2019.

Sd/-

(M.M.KUMAR)
PRESIDENT

Sd/-

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

13.03.2019
Ritu Sharma